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Case Number: 26CHCV00491 Hearing Date: July 8, 2026 Dept: F43

Dept. F43

Hearing Date: 07-08-26

Case # 26CHCV00491, Doe v. Delphi
Schools, Inc., et al.

Trial Date: N/A

DEMURRER

MOVING PARTY: Defendant Delphi Schools, Inc.

RESPONDING PARTY: Plaintiff Chris Doe

RELIEF REQUESTED

Order sustaining demurrer to the First

Amended Complaint's Second Cause of Action (Negligent Misrepresentation)
without leave to amend.

RULING: Demurrer is sustained with leave to amend.

SUMMARY OF ACTION

On February 5, 2026, plaintiff Chris Doe
filed this child sexual abuse action against defendants Delphi Schools, Inc.,
AEALAS, Inc., and Randolph Clifford Jackson on February 5, 2026, asserting

sexual assault of a minor; negligent misrepresentation; negligent hiring, supervision, and retention of defendant Jackson; and negligent supervision of plaintiff. Plaintiff asserts negligence misrepresentation against defendant Delphi Schools, Inc.

Defendant Delphi Schools previously demurred to the second cause of action, and the court sustained the demurrer with leave to amend.

On May 11, 2026, Plaintiff filed a First Amended Complaint (FAC) asserting the same claims.

On June 10, 2026, defendant Delphi Schools, Inc. filed a demurrer to the First Amended Complaint's Second Cause of Action. Plaintiff filed an opposition on June 24, 2026, and defendant Delphi Schools replied on June 30, 2026.

MEET AND CONFER

Before filing a demurrer, the parties must meet and confer "in person, by telephone, or by video conference." (Code Civ. Proc., § 430.41, subd. (a).) The moving party must file and serve a meet and confer declaration stating either: (1) the means by which the parties met and conferred, that the parties did not reach an agreement resolving the issues raised in the demurrer; or (2) that the party who filed the pleading subject to the demurrer failed to respond to the meet and confer request or failed to meet and confer in good faith. (Code Civ. Proc., §§ 430.41, subd. (a)(3).)

Defendant Delphi Schools failed to satisfy the "meet and confer" because counsel only exchanged emails. (Declaration of Mai X. Nguyen ¶¶ 2-4, Exhs. A, B, C.)

FIRST AMENDED COMPLAINT'S ALLEGATIONS

From 2010 through his arrest in 2015, defendant Jackson sexually abused at least seven male victims under the age of 16, including Plaintiff. (FAC ¶ 18.) Jackson was employed by defendant Delphi Schools, Inc. (Defendant) as a coach and athletic director at Delphi Academy from August of 2010 to June of 2014. (Id.

¶¶ 7, 11.)

During the 2011-2012 and 2013-2014 school years, Jackson groomed and sexually abused a male student both on and off campus. (Id. ¶ 9.) Jackson spent time alone with the student; transported the to and from school; touched the student inappropriately; made sexually inappropriate comments; showed the student pornographic images; and bought the student meals. In November or December of 2013, the male student's parents reported Jackson's behavior to Delphi Schools. (Id. ¶ 10.) Rather than report the information to law enforcement or Child Protective Services, Delphi Schools' personnel conducted an internal investigation. (Id. ¶ 10.) Defendant Jackson denied wrongdoing, and Delphi Schools reported finding no evidence of wrongdoing and took no further disciplinary action. After Defendant refused to terminate Jackson, the parents withdrew their child from Delphi Academy. (Id. ¶ 10.) Jackson subsequently resigned from Delphi Academy in June of 2014. (Id. ¶ 11.)

In the summer of 2014, defendant AEALAS hired Jackson as a physical education teacher and basketball coach at Einstein Academy, where he repeated the same pattern of abuse with Plaintiff during the 2014-2015 school year. (FAC ¶¶ 12, 14-15.) In December of 2014, Jackson drove Plaintiff to his home and engaged in inappropriate sexual discussions. (Id. ¶ 15.) In January of 2015, Jackson dared Plaintiff to manually masturbate himself in front of Jackson and then Jackson pulled his pants down and began masturbating. Plaintiff voiced that he did not want to do that, Jackson put his pants back on, and Plaintiff later disclosed the incident to other students. (Id. ¶¶ 15-16.) One student disclosed that he had a similar experience with Jackson a few months earlier at the beginning of the school year. (Id. ¶ 16.)

Plaintiff claims that prior to AEALAS hiring Jackson, Defendant provided AEALAS with a positive review of Jackson through two of its employees who did not disclose the 2013 incident. (FAC ¶ 13.) AEALAS's athletic director, Ken Erenberg, was the employee tasked with the responsibility of vetting Jackson.

As part of AEALAS's vetting process, Mr. Erenberg spoke by phone with Defendant's Athletic Director, Mark Lara about Jackson. Mr. Lara gave Mr. Erenberg a positive and glowing review of Jackson and did not disclose anything negative about him, including but not limited to the serious 2013 allegations which were known to Defendant. Mr. Erenberg also contacted Defendant's Art Director and soccer coach, Cesar Jiminez. Mr. Jiminez[1] also gave Mr. Erenberg a positive and glowing review of Jackson and did not disclose anything negative, including the 2013 allegations that were known to Defendant. Mr. Erenberg relied on the veracity of Mr. Lara's and Mr. Jiminez's positive references when he recommended that AEALAS hired Jackson as a basketball coach.

REQUESTS FOR JUDICIAL NOTICE

Defendant Delphi Schools (Defendant) asks the court to take judicial notice of the transcript of the deposition of Mark Lara pursuant to Evidence Code sections 451 and 452.

During his deposition on April 28, 2026, Mr. Lara testified he first became employed by Defendant in August of 2015.

(Defendant's Exh. D at p. 9:2-4.)

Defendant asserts the employment date cannot be disputed and directly contradicts Plaintiff's allegation that Mr. Lara provided any review of Jackson to AEALAS's athletic director on behalf of Defendant before AEALAS hired Jackson because Jackson had resigned from Defendant a year before Mr. Lara began employment at Defendant. (FAC ¶¶

12-13.) In opposition, Plaintiff objects

to the request to the extent it asks the court to treat the deposition testimony as an adjudicative fact to defeat well-pleaded allegations and asks the court to limit its ruling to the existence of the deposition transcript. According to Plaintiff, the truth of the deposition testimony is subject to dispute.

While a court may take judicial notice of the existence of a deposition transcript filed as part of the court record, the court does not automatically take judicial notice of the truth of the statements the transcript contains unless the facts contained within the transcript are undisputed or cannot be disputed. "On a demurrer a court's function is limited to testing the legal sufficiency of the complaint. 'A demurrer is simply not the appropriate procedure for determining the truth of disputed facts.' The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of documents whose truthfulness or proper interpretation are disputable." (Joslin v. H.A.S. Ins.

Brokerage (1986) 184 Cal.App.3d 369, 374, citations omitted.) “[J]udicial notice of matters upon demurrer will be dispositive only in those instances where there is not or cannot be a factual dispute concerning that which is sought to be judicially noticed.” (Cruz v. County of Los Angeles (1985) 173 Cal.App.3d 1131, 1134; see also Del E. Webb Corp. v. Structural Materials Co. (1981) 123 Cal.App.3d 593, 605.)

Defendant presents an email chain in which plaintiff’s counsel acknowledges Mr. Lara’s testimony concerning “not work[ing] at Delphi,” but notes that Mr. Erenberg “insists that he spoke to him.” (Defendant’s Exh. B at p. 1 [email sent on June 8, 2026].) While this appears to create a factual dispute concerning when and whether Mr. Lara spoke to Mr. Erenberg about Jackson, it does not create a dispute concerning when Mr. Lara was employed by Defendant and had authority to speak on Defendant’s behalf to Mr. Lara about Jackson.

Because the parties do not demonstrate an evidentiary dispute exists, the court takes judicial notice of the existence of the deposition transcript and the fact that Mr. Lara was not employed by defendant Delphi Schools until August of 2015.

ANALYSIS

A. Demurrer

A party may respond to a pleading against it by demurrer based on one or more of eight enumerated grounds, including that “the pleading does not state facts sufficient to constitute a cause of action” and is uncertain, meaning “ambiguous and unintelligible.” (Code Civ. Proc., § 430.10, subds. (e), (f).) The grounds for demurring must be apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

The purpose of a demurrer is to challenge the sufficiency of a pleading “by raising questions of law.” (Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.) “In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc., § 452.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions

or conclusions of fact or law[.]” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.)

In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.)

If a demurrer is sustained and the pleading is subsequently amended, the demurring party cannot file a subsequent demurrer on grounds that could have been raised in the previous demurrer. (Code Civ. Proc., § 430.41, subd. (b).)

B. Section Cause of Action: Negligent Misrepresentation

“The elements of a negligent misrepresentation claim are: ‘(1) a misrepresentation of a past or existing material fact, (2) made without reasonable ground for believing it to be true, (3) made with the intent to induce another’s reliance on the fact misrepresented, (4) justifiable reliance on the misrepresentation, and (5) resulting damage.’” (Alafi v. Cohen (2024) 106 Cal.App.5th 46, 65, citations omitted.) Negligent misrepresentation does not require knowledge of falsity or an intent to defraud. (Borman v. Brown (2021) 59 Cal.App.5th 1048, 1060.)

“Material” means that the fact is significant enough that a reasonable person would consider it important in making a decision. (Public Employees’ Retirement System v. Moody’s Investors Service, Inc. (2014) 226 Cal.App.4th 643, 662

[“[W]hen a party possesses or holds itself out as possessing superior knowledge or special information or expertise regarding the subject matter and a plaintiff is so situated that it may reasonably rely on such supposed knowledge, information, or expertise, the defendant’s representation may be treated as one of material fact.”].) The second element

focuses on whether the defendant acted negligently in making the “false statement” rather than whether the defendant intended to deceive the plaintiff. (Tindell v Murphy (2018) 22 Cal.App.5th 1239, 1252.) The third element requires that defendant made the representation with “the intent to induce another’s reliance on the [representation].” (Public Employees’ Retirement System, supra, 226 Cal.App.4th at pp. 668-669.)

“Reliance exists when the misrepresentation or nondisclosure was an immediate cause of the plaintiff’s conduct which altered his or her legal relations, and when without such misrepresentation or nondisclosure he or she would not, in all reasonable probability, have entered into the contract or

other transaction.” (Alliance Mortgage Co. v. Rothwell (1995)
10 Cal.4th 1226, 1239, citations omitted.)

Defendant contends Plaintiff’s allegations
fail to meet the heightened pleading requirements for negligent
misrepresentation claims and that Randi W’s ruling is limited to written
letters of recommendation.

1. Specificity and Heightened Pleading Standard

The court first addresses whether Plaintiff
pleads sufficient facts to satisfy the heightened pleading requirement for
fraud and negligent misrepresentation causes of action.

Courts apply a heightened fraud-like pleading
standard to negligent misrepresentation causes of action. (Charnay v. Cobert (2006) 145
Cal.App.4th 170; Lazar v. Superior Court (1996) 12 Cal.4th 631.) “Fraud and negligent misrepresentation must
be pleaded with particularity and by facts that ‘show how, when, where, to
whom, and by what means the representations were tendered.’” (Charnay, supra, 145
Cal.App.4th at pp. 184-185, fn. 14 [quoting Lazar, supra, 12
Cal.4th at p. 645].) When asserting
fraud against a corporate employer, the plaintiff must state the names of the
persons who made the representations, their authority to speak on behalf of the
corporation, to whom they spoke, what they said or wrote, and when it was said
or written. (Lazar, supra,
12 Cal.4th at p. 645 [quoting Tarmann v. State Farm Mutual Auto. Ins. Co.
(1991) 2 Cal.App.4th 153, 157].)

Plaintiff also fails to adequately allege the
first three elements because Plaintiff does not state the full details
concerning the specific misrepresentation, the alleged speaker knew they made a
misrepresentation, and that the speaker had authority to speak on Defendant’s
behalf.

First, Plaintiff does not state when the alleged
contacts occurred between Mr. Erenberg, Mr. Lara, and Mr. Jiminez. The court infers from the FAC’s allegations
that the communication between Mr. Erenberg and Mr. Jiminez occurred sometime
before August of 2014 because Plaintiff alleges Jackson began working at AEALAS
in August of 2014. (FAC ¶ 12.) Moreover, based on Mr. Lara’s deposition
testimony, any conversation that may have occurred between Mr. Lara and Mr.

Erenberg concerning Jackson before August of 2015, is insufficient to demonstrate negligent misrepresentation.

Because Mr. Lara was not employed by Defendant before August of 2015, he lacked any authority to act on Defendant's behalf in providing any reference concerning Jackson to AEALAS.

Second, Plaintiff fails to state how Mr. Erenberg contacted Mr. Jiminez. (FAC ¶ 12.) Plaintiff alleges a telephone conversation between Mr. Erenberg and Mr. Lara.

Third, Plaintiff does not allege facts demonstrating Mr. Jiminez had authority to speak on behalf of Defendant. Plaintiff alleges Mr. Erenberg contacted Delphi's Art Director and soccer coach, Mr. Jiminez, as part of the vetting process. (FAC ¶ 13.) Plaintiff then states Mr. Jiminez "likewise gave Mr. Erenberg a positive and/or glowing review of Jackson and did not disclose anything that was in any way negative, including information about the serious 2013 allegations that was known to Delphi." (Id. ¶ 13.) Plaintiff also later alleges "Cesar" provided AEALAS's athletic director with misleading information about Jackson knowing the information would be used to vet Jackson as a potential coach at AEALAS. (Id. ¶ 29.) Although Plaintiff alleges Mr. Jiminez was the Art Director and soccer coach, this does not demonstrate Mr. Jiminez was authorized by Defendant to speak on Defendant's behalf concerning Jackson as a former employee.

Fourth, Plaintiff fails to establish Mr. Jiminez had knowledge of the 2013 allegations against Jackson. A plaintiff seeking to hold a corporate or organizational defendant liable for negligent misrepresentation based on the conduct of an employee must allege the misrepresentation with particularity, identifying the specific employee who made the statement, that employee's authority to speak for the organization, the content and timing of the statement, and to whom it was made. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) Plaintiff alleges "information about the serious 2013 allegations . . . was known to Delphi." (FAC ¶ 13.) As mentioned above, Plaintiff fails to allege when the supposed statement occurred. Second, Plaintiff may demonstrate liability based on the employee's imputed knowledge—acting where authorized by the principal-employer, agent employed in managerial capacity and within the scope of employment, or principal-employer subsequently ratifying the agent-employee's conduct. Plaintiff does

not allege Defendant authorized Mr. Jiminez's conduct, Defendant subsequently ratified Mr. Jiminez's conduct, or Mr. Jiminez had actual knowledge of the 2013 allegation. Knowledge acquired by an agent in the course and scope of performing agency duties is imputed to the principal, but the principal's knowledge of facts is not automatically imputed to an agent. (Godwin v. City of Bellflower (1992) 5 Cal.App.4th 1625, 1631.) Plaintiff's allegations do not indicate Mr. Jiminez is a corporate or managerial officer with authority to act on defendant Defendant's behalf and or Mr. Jiminez ever had personal knowledge of Jackson's 2013 allegations either from being notified by Defendant or based on his own conduct. Without this information, the court cannot determine whether Defendant through Jiminez intended that AEALAS rely on the alleged omission of the 2013 allegations.

Regardless of what representations were or were not made, the First Amended Complaint alleges Mr. Erenberg reasonably relied on Mr. Jiminez's and Mr. Lara's positive references when he recommended that AEALAS hire Jackson as the new basketball coach. (FAC ¶¶ 13, 29.)

Because Plaintiff fails to allege negligent misrepresentation according to the heightened pleading standard in Lazar v. Superior Court (1996), the court sustains defendant Delphi Schools, Inc.'s demurrer to the First Amended Complaint's Second Cause of Action.

2. Randi W.'s reasoning is not limited to written letters of recommendation.

The second major issue raised by Defendant is whether alleging an oral recommendation is sufficient to support a negligent misrepresentation claim pursuant to Randi W v. Muroc Joint Unified School District (1997).

California law recognizes negligent misrepresentation claims against prior employers who fail to disclose sexual abuse allegations when providing employment references, particularly in cases involving the Child Abuse and Neglect Reporting Act (CANRA). Randi W. v. Muroc Joint Unified School District (1997) addresses a duty to third parties in the school-employment context when a prior employer chooses to write letters of recommendations that omit material information that could affect student safety.

A former employer who undertakes to provide recommendations of employees “should not be held accountable to third persons for failing to disclose negative information” concerning a new employee unless the former employer’s recommendation amounts to affirmative misrepresentations that present a foreseeable and substantial risk of physical harm to a third person. (*Randi W. v. Muroc Joint Unified School District* (1997) 14 Cal.4th 1166, 1070 (*Randi W.*); see also Rest.2d of Torts, §§ 310, 311.) “[T]he writer of a letter of recommendation owes to third persons a duty not to misrepresent the facts in describing the qualifications and character of a former employee, if making these misrepresentations would present a substantial, foreseeable risk of physical injury to the third persons. In the absence, however, of resulting physical injury, or some special relationship between the parties, the writer of a letter of recommendation should have no duty of care extending to third persons for misrepresentations made concerning former employees. In those cases, the policy favoring free and open communication with prospective employers should prevail.” (*Id.* at p. 1081.)

In *Randi W.*, the California Supreme Court held that when a school’s officers author letters of recommendation that recommend a former employee for a position without reservation or qualification – despite the officers’ knowledge that the former employee was involved in inappropriate sexual situations and that complaints about the situation resulted in his resignation – the omitted facts combined with the positive statements constitute affirmative representations that imply the individual is fit for the position they seek. (*Randi W.*, *supra*, 14 Cal.4th at pp. 1082-1084 [letters of recommendation containing affirmative misrepresentations occur when they give positive evaluations of an administrator’s character and rapport with students but fail to disclose that disciplinary actions had been taken against the employee for alleged sexual harassment].) The writer of such a letter “owes a duty not to misrepresent the facts in describing the qualifications and character of a former employee, if the misrepresentations present a substantial, foreseeable risk of physical harm.” (*P.S. v. San Bernardino City Unified School Dist.* (2009) 174 Cal.App.4th 953, 961.)

Although *Randi W.* focuses on letters of recommendation and the writer of letters of recommendation, the underlying

principle of the case was grounded in the Restatement Second of Torts sections 310 and 311, Civil Code sections 1709 and 1710, and the common law "misleading half-truths" doctrine. (*Randi W. v. Muroc Joint Unified School District* (1997) 14 Cal.4th 1066, 1082-1086.) The Court also looked to its own reasoning in the case *Garcia v. Superior Court* (1990) 50 Cal.3d 728, which involved oral statements. In analyzing these legal authorities, the Court did not limit *Randi W.*'s reasoning to any specific mode of communication but focused on the facts before the Court in that case.

Pursuant to Restatement of Torts Section 310, "An actor who makes a misrepresentation is subject to liability to another for physical harm which results from an act done by the other or a third person in reliance upon the truth of the representation, if the actor (a) intends his statement to induce or should realize that it is likely to induce action by the other, or a third person, which involves an unreasonable risk of physical harm to the other, and (b) knows (i) that the statement is false, or (ii) that he has not the knowledge which he professes."

(Rest.2d Torts, § 310.) Section

311 provides: (1) One who negligently gives false information to another is subject to liability for physical harm caused by action taken by the other in reasonable reliance upon such information, where such harm results (a) to the other, or (b) to such third persons as the actor should expect to be put in peril by the action taken. (2) Such negligence may consist of failure to exercise reasonable care (a) in ascertaining the accuracy of the information, or (b) in the manner in which it is communicated." (Rest. 2d of Torts, § 311.)

Civil Code section 1709 states "One who willfully deceives another with intent to induce him to alter his position to his injury or risk, is liable for any damage which he thereby suffers." (Civ. Code, § 1709.) Section 1710 defines deceit, the basis for fraud and negligent misrepresentation, as "1. The suggestion, as a fact, of that which is not true, by one who does not believe it to be true; 2. The assertion, as a fact, of that which is not true, by one who has no reasonable ground for believing it to be true; 3. The suppression of a fact, by one who is bound to disclose it, or who gives information of other facts which are likely to mislead for want of communication of that fact; or, 4. A promise, made without any intention of performing it." (Civ. Code, § 1710.)

Under the Misleading Half-Truths doctrine, “Even where no duty to disclose would otherwise exist, ‘where one does speak he must speak the whole truth to the end that he does not conceal any facts which materially qualify those stated. One who is asked for or volunteers information must be truthful, and the telling of a half-truth calculated to deceive is fraud.’”

(Vega v. Jones, Day, Reavis & Pogue (2004) 121 Cal.App.4th 282, 292, citations and quotations omitted.)

The above legal authorities expressly limits the “non-disclosure” of a material fact to written communications.

In Garcia v. Superior Court (1990), the issue was whether the defendant, a parole officer, owed a duty to not intentionally or negligently communicate false information, where harm to a third party is foreseeable. Garcia involved a parole officer’s oral statements concerning a parolee and a plaintiff who was kidnapped and shot by the parolee. The alleged misrepresentations in Garcia are oral statements. (Garcia v. Superior Court (1990) 50 Cal.3d 728, 732-733.) The Court looked to the Restatement of Torts section 311 in analyzing whether a parole officer failed to provide “whole” and complete information concerning the danger of a parolee who was previously incarcerated for murdering his wife. (Id. at p. 736 [parole officer has a duty to use reasonable care in communicating information about parolee because the parole officer chose to communicate information about the parolee to a third party].) The California Supreme Court did not state in either *Randi W.* or *Garcia* that the negligent misrepresentation legal principles as to third parties only apply when the misrepresentations occur in written form.

As stated previously, a former employer who undertakes to provide recommendations of employees “should not be held accountable to third persons for failing to disclose negative information” concerning a new employee unless the former employer’s recommendation amounts to affirmative misrepresentations that present a foreseeable and substantial risk of physical harm to a third person. (*Randi W.*, supra, 14 Cal.4th at p. 1070.)

Due to the pleading issues addressed above, Plaintiff fails to adequately allege negligent misrepresentation.

Plaintiff does adequately allege Defendant owed a duty to prospective employers, including defendant AEALAS, and third-party students, including Plaintiff, not to misrepresent the facts in describing the qualifications and character of a former employee, including defendant Jackson, if making the misrepresentations would present a substantial, foreseeable risk of physical injury to the prospective employers or third person. (FAC ¶ 27.) Here, Plaintiff fails to allege a specific misrepresentation and only states Mr. Jiminez provided a “positive and/or glowing review of Jackson” and “represented to AEALAS that Jackson was an excellent employee who posed no reasonable risk to students and/or had no serious complaints against him,” without disclosing the 2013 allegations. (Id. ¶¶ 13, 28.) But Plaintiff does not allege Jiminez knew about the 2013 incident.

Plaintiff also adequately alleges Jackson posed a foreseeable risk of a particular kind of injury to Plaintiff based on Jackson’s past alleged conduct. (FAC ¶¶ 8-11, 27.) Plaintiff’s injuries were foreseeable because they resulted from a pattern of conduct by defendant Jackson at Delphi which resulted in a student complaint, a student leaving the school, and Jackson resigning from his employment with the school. (Compare FAC ¶¶ 8-11, with FAC ¶¶ 14-16.) Public policy considerations also recognize a policy of preventing future harm, i.e. protecting children from sexual and physical abuse. (Randi W., supra, 14 Cal.4th at pp. 1078-1079.)

However, Plaintiff has failed to allege Mr. Jiminez is an employee with authority to give a positive review on Defendant’s behalf, by what method Mr. Jiminez communicated the alleged misrepresentation to Mr. Erenberg, and Mr. Jiminez’s knowledge of the 2013 allegations.

Because Plaintiff fails to allege these key facts, the First Amended Complaint fails to allege Defendant, through Mr. Jiminez, intended to induce AEALAS’s and Mr. Erenberg’s reliance on any misrepresentation.

Therefore, the court sustains the demurrer to the Second Cause of Action.

Plaintiff claims he can amend his pleading to cure the deficiencies concerning specific dates, the sequence of vetting calls, additional speakers, authority, and precise phrasing based on information learned during discovery. Considering the court's interpretation of *Randi W. and Garcia* and Plaintiff's claim about having more information from discovery, the court grants Plaintiff one more opportunity to amend his complaint.

CONCLUSION and ORDER

Defendant Delphi Schools, Inc.'s demurrer to the First Amended Complaint's Second Cause of Action is sustained with leave to amend.

Plaintiff may file and serve an amended complaint within twenty (20) days of the issuing of this order.

Defendant Delphi Schools, Inc. to give notice.

[1] The First Amended Complaint states

"Mr. Lara likewise." (FAC ¶ 13.) The court believes this is a typo and Plaintiff meant Mr. Jiminez.